

AFTERNOON SESSION

(The Tribunal reconvened at 1345 hours.)

THE MARSHAL: The Tribunal is again in session.

THE PRESIDENT: Judge Dixon will continue with the reading of the Judgment.

JUDGE DIXON:

The arguments put forth by the defense may be grouped under four different headings and will be discussed in that order by the Tribunal: Jurisdiction, Self Defense and Necessity, Superior Orders and Non-Involvement.

The substantive provisions of Control Council Law No. 10 which are pertinent in this case, read as follows:

- Art. II, 1. (b) War Crimes. Atrocities or offenses against persons or property constituting violations of laws or customs of war, including but not limited to, murder, ill-treatment or deportation to slave labor or for any other purpose, of civilian population from occupied territory, murder or ill-treatment of prisoners of war or persons on the seas, killing of hostages, plunder of public or private property, wanton destruction of cities, towns or villages, or devastation not justified by military necessity.
- (c) Crimes against Humanity. Atrocities and offenses, including but not limited to murder, extermination, enslavement, deportation, imprisonment, torture, rape or other inhumane acts committed against any civilian population, or persecutions on political, racial or religious grounds whether or not in violation of the domestic laws of the country where perpetrated.
- (d) Membership in categories of a criminal group or organization declared criminal by the International Military Tribunal.
2. Any person without regard to nationality or the capacity in which he acted, is deemed to have committed a crime as defined in paragraph 1